

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF DUE-PROCESS IMPAIRMENT ARISING FROM FAILURE  
OF E-SERVICE**

Defendant/Appellant, Marc Moszkowski, hereby gives notice of a material deprivation of procedural due process resulting from the failure of mandatory e-service under Fla. R. Jud. Admin. 2.516, and states:

1. The docket reflects three filings by the Court/Clerk on:
  - November 10, 2025
  - November 12, 2025
  - November 18, 2025
2. Defendant received no e-service notices for any of these filings, despite being properly registered with the e-Portal.

3. This failure is not technical or random:

Plaintiffs' counsel did receive notice of the "*Affidavit of Indigent Status Filed with Clerk Determining that Applicant is Indigent*", filed on November 18, 2025, because counsel later filed a *Motion in Opposition*.

Defendant did not receive notice of the Court's filings and only learned about it through Plaintiff's Motion in Opposition.

4. This establishes a selective service failure, in which service reached one party but not the other.

This is the most serious kind of Rule 2.516 violation and results in:

- absent notice,
- absent opportunity to react,
- unequal access to Court filings,
- structural unfairness,
- and effective ex parte advantage to Plaintiffs.

5. Because the affected filings concern Defendant's indigent status, deadlines, and rights to appellate review, the service failure impairs constitutionally required due process.

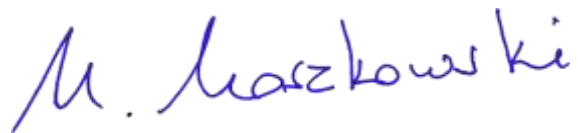
6. Florida law does not permit a party to be bound by a ruling he was never served.

WHEREFORE, Defendant respectfully requests:

1. A finding that mandatory service did not occur;
2. An order directing the Clerk to re-serve all affected documents;
3. A suspension or recalculation of any deadlines tied to filings made on November 10, 12, and 18; and
4. Any other relief necessary to restore procedural fairness.

Respectfully submitted this 24<sup>th</sup> day of November, 2025.

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### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 24<sup>th</sup> day of November, 2025, a copy of this Document has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

*M. Marzowski*